

PRO FORMA DISBURSEMENT ACCOUNT

FROM :

TRANSTOTAL AGENCIA MARITIMA S.A.
HEAD OFFICE - CALLAO
Jr. Talara N° 140 - 2° Floor
Callao- Peru
Group mails:
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operations@transtotalperu.com

TO :

Naviera Petral S.A.
Calle Alcanfores 393 Of. 102,
Lima 18, Perú
sgalvez@petral.com.pe

Vessel: MV MOQUEGUA
Gross Tonnage: 8259
LOA: 134.16
Voyage: TBC
Port / Terminal: Matarani/Tisur
Operation: Loading of Sulfuric Acid
MT: 13,500
Hrs in port: 33
ETA: TBC
ETB: TBC
ETD: TBC

ITEM	DESCRIPTION	PROFORMA (USD)	VAT 18%
PORT EXPENSES			
Berth Dues	(USD\$0.65*LOA*Hr)	2,833.46	510.02
Pilot + Tug Boats + Launch for Pilot (*)			
Port charges to Tug Boats In/Out			
Port toll	USD 75.00*move	75.00	13.50
Launch for Authorities (***)	(USD\$155*hr + 18% VAT) - MIN 2 HRS	310.00	55.80
Linemen		357.30	64.31
Coordinator on Board(****)	(\$225*Day + 18% Vat)	450.00	81.00
Subtotal Port Expenses		4,025.76	724.64
AUTHORITIES EXPENSES			
Light Dues (Coming from a international port)	(\$0.03*GT) coming from a National port	247.77	
Sanitary Inspection (Reception/Dispatch)		670.00	
Clearance (In/Out)		200.00	
Subtotal Authorities Expenses		1,117.77	0.00
AGENCY EXPENSES			
Agency Fee (**)		1,100.00	198.00
Comunnication		200.00	36.00
Transportation		200.00	36.00
Subtotal Agency Expenses		1,500.00	270.00
SUB TOTAL VESSEL EXPENSES		6,643.53	994.64
TOTAL VESSEL EXPENSES USD (Subtotal + VAT)			7,638.17

THE COMPANY will not be responsible for total or partial non-compliance and / or late fulfillment of its obligations referred to in this proposal or agreement for causes that are due to extraordinary and unforeseeable or unavoidable events beyond its control or actions. Force Majeure will be informed in writing detailing their nature, beginning, duration and consequences.

The Principal hereby undertakes to keep the Agent and its employees, agents and sub-contractors indemnified and to hold them harmless against all actions, proceedings, claims, demands or liabilities whatsoever or howsoever arising which may be brought against them or incurred or suffered by them arising out of or in connection with the performance of this Agreement, and against and in respect of all costs, loss, fines, damage and expenses (including legal costs and expenses on a full indemnity basis) which the Agent may suffer or incur (either directly or indirectly) in the course of the performance of this Agreement.

In regards of the fines, the Principal should pay any potential fines charged to the Agent as a result or in connection with the performance of this Agreement (either directly or indirectly).

Liability to Principal - The Agent shall not be liable to the Principal for any loss, damage, delay or expense of whatsoever nature, whether direct or indirect, (including but not limited to loss of profit arising out of or in connection with detention of or delay to the Vessel) and howsoever arising in the course of performance of this Agreement, unless same is proved to have resulted solely from the negligence or wilful default of the Agent.

Save where loss, damage, delay or expense has resulted from the Agent's personal act or omission committed with the intent to cause same or recklessly and with knowledge that such loss, damage, delay or expense would probably result, the Agent's liability for each incident or series of incidents giving rise to a claim or claims shall never exceed a total of ten (10) times the Remuneration which shall be deemed earned in any event.

Himalaya - It is hereby expressly agreed that no employee of the Agent (including every sub-contractor from time to time employed by the Agent) shall in any circumstances whatsoever be under any liability whatsoever to the Principal for any expense, loss, damage or delay of whatsoever kind arising or resulting directly or indirectly from any act, neglect, or default on its part while acting in the course of or in connection with its employment and, without prejudice to the generality of the foregoing provisions in this Clause, every exemption, limitation, condition and liberty herein contained and every right, exemption from liability, defence and immunity of whatsoever nature applicable to the Agent or to which the Agent is entitled hereunder shall also be available and shall extend to protect every such employee or sub-contractor acting as aforesaid and for the purpose of all the foregoing provisions of this Clause the Agent is or shall be deemed to be acting as agent or trustee on behalf of and for the benefit of all persons who are or might be its servants or agents from time to time (including sub- contractors as aforesaid) and all such persons shall to this extent be or be deemed to be parties to this Agreement.

Other remarks

(*) Pilot overcharges: 25% if maneuver during 18:00-24:00 hrs, 50% if maneuver during 00:00-07:00 hrs, 50% Sundays & Holidays
(**) Agency fee: Valid for 5 days from arrival to depart. Extra time fee \$150 per Day.
(***) Launch overcharges: 50% extra if operation is done during port closure.
(****) 50% overcharges will be applied on public holidays for coordinators and Linemen

Banking details

BANCO DE CREDITO DEL PERU - BCP
SWIFT BCPLPEPL
ACCOUNT NUMBER 194-2060533-1-73
to the order of TRANSTOTAL AGENCIA MARITIMA S.A.